



Bill Number: S.B. 1538

Petersen Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Allows a moving civil traffic violation to be issued by a peace officer or a prosecutor, rather than only a peace officer.

PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1538
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-1592, Arizona Revised Statutes, is amended to
3 read:

4 28-1592. Commencement of action; original citation changes

5 A. A civil traffic violation case is commenced by issuance or
6 filing of a uniform traffic ticket and complaint as provided in this
7 article.

8 B. A civil traffic violation case shall be commenced as follows:

9 1. If a case is commenced by issuance, it shall be issued within
10 sixty days after the alleged violation.

11 2. If the case is commenced by filing, it shall be filed within
12 sixty days after the alleged violation and shall be served within ninety
13 days after the filing date.

14 3. Except as provided in paragraph 4 of this subsection, within one
15 hundred eighty days after the alleged violation if the alleged violation
16 is under investigation in conjunction with a traffic accident.

17 4. Within one year after the alleged violation if the alleged
18 violation is under investigation in conjunction with a traffic accident
19 resulting in death.

1 C. On an original citation, if a peace officer or duly authorized
2 traffic agent changes the date, time or location of the violation or the
3 section of law that is allegedly violated, the original citation must be
4 amended through the court pursuant to the Arizona rules of civil **PROCEDURE**
5 **FOR** traffic and civil boating violations.

6 D. A MOVING CIVIL TRAFFIC VIOLATION MAY ONLY BE ISSUED BY A PEACE
7 OFFICER [OR PROSECUTOR].

8 Enroll and engross to conform

9 Amend title to conform

WARREN PETERSEN

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02/17/2026

3:14 PM

C: JR

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